

Of watchdogs and wiretaps

It's often the quiet PDFs you need to watch out for. In June, the Indian government uploaded a draft amendment to its Telecom Cyber Security Rules. Just a bureaucratic drop on a government portal – like a rock in water. For those paying attention, the ripples were wide and far-reaching.

The amendments – open for public comment until July 24 – aimed to broaden the government's digital perimeter. Ostensibly, they're about strengthening telecom cybersecurity. But scratch beneath the surface, and the proposal reads more like a sweeping extension of control, touching everything from your mobile number to the second-hand iPhone you're thinking of flipping on OLX.

At the heart of the proposed changes are two technical tools with consequences: a new *Mobile Number Validation (MNV)* platform and a centralized *IMEI* database.

The MNV system is a verification layer for phone numbers – like Aadhaar, but for SIMs. It allows digital services to confirm if a mobile number belongs to the person claiming it. In some cases, this check could be mandatory. In others, companies could opt-in voluntarily – at ₹3 a pop. It's a little like charging a toll to confirm who's behind the wheel.

There's the IMEI regulation. Every mobile phone has a unique International Mobile Equipment Identity number – like a digital fingerprint. The draft mandates that manufacturers avoid duplicate or spoofed IMEIs and maintain a live database of every phone sold in India. Planning to sell your old OnePlus? That'll be ₹10 to check if it's been blacklisted.

From the government's lens, it's an infrastructure upgrade – modern tools to curb identity theft, SIM swapping fraud, and impersonation scams. In theory, this sounds fine. But good cybersecurity isn't just about tools – it's also about who gets to use them, and how.

Enter the Internet Freedom Foundation (IFF), a non-profit digital rights watchdog that's on high alert. In its submission to the Department of Telecommunications, the IFF raises eyebrows and some constitutional concerns.

First, the new category of "Telecommunication Identifier User Entities" (TIUEs) is painted



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Jayesh Shinde
Executive Editor

with a giant brushstroke. Everyone from food delivery apps to OTT platforms could be swept into compliance – without clear rationale or recourse.

Second, the IFF points to the frightening lack of oversight. The draft allows the government to collect user data or suspend a person's telecom identifier without needing judicial sign-off. That means your number could be cut off without notice, your apps bricked, and your digital life locked – justified vaguely in the name of “public interest.”

Worse, there's no mention of appeals or redressal. No helpline, no hearing, just radio silence. That's not just an oversight – it's a flashing red signal in a country where mobile numbers often are becoming an identity.

Meanwhile, law firm Khaitan & Co. takes a measured approach. In their opinion, the draft rules reflect a logical evolution – recognizing that mobile numbers are now stitched into everything from e-commerce logins to UPI payments. If platforms use telecom identifiers, the thinking goes, they should also share the responsibility to protect them.

But there's devil in the docket too. Harsh Walia and Sanjuktha Yermal, co-authors of the firm's review, caution that the new rules could overlap or even contradict obligations under India's existing IT Act. They also warn that startups – already battling rising compliance fatigue – may find it hard to absorb the extra costs tied to MNV checks and IMEI lookups.

Their bottom line is even if the government's intentions might be valid, but the execution needs clarity, proportionality, and procedural safeguards.

The question isn't whether security is needed. The question is how much power one entity should have over your connection to the digital world, and whether you get a say when that connection is severed.

When your mobile number doubles as your banking key, your e-commerce pass, your ride home and your work login – switching it off isn't just inconvenient. It's existential. And in a democracy, existential powers should require extraordinary checks. Don't you agree? 



Let me know your thoughts on this column at:
jayesh.shinde@digit.in |
@jshinde